

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 2752

By: Caldwell (Trey)

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6 AS INTRODUCED

7 An Act relating to eminent domain; amending 27 O.S.
8 2021, Section 7, which relates to eminent domain for
9 electricity; determining when eminent domain may be
10 used; providing that eminent domain shall not be used
11 for certain facilities on private property; requiring
12 certain entities seeking eminent domain to receive
13 specific certificates under certain circumstances;
14 providing the Corporation Commission grant such
15 certificates; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27 O.S. 2021, Section 7, is
amended to read as follows:

Section 7. A. Except as otherwise provided in this section,
any person, firm or corporation organized under the laws of this
state, or authorized to do business in this state, to furnish light,
heat or power by electricity or natural gas, or any other person,
association or firm engaged in furnishing lights, heat or power by
electricity or natural gas shall have and exercise the right of
eminent domain in the same manner and by like proceedings as
provided for railroad corporations by laws of this state.

1 B. The power of eminent domain shall not be used for the siting
2 or building of wind ~~turbines~~ energy facilities, solar energy
3 facilities, battery storage facilities, hydrogen gas facilities, or
4 other renewable energy facilities on private property.

5 C. Prior to seeking to exercise eminent domain for an electric
6 transmission facility rated greater than three hundred (300)
7 kilovolts, any person, firm, or corporation under the purview of
8 subsection A of this section, must have obtained a Certificate of
9 Authority from the Corporation Commission, if required, under Title
10 17 of the Oklahoma Statutes.

11 SECTION 2. This act shall become effective November 1, 2025.

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